Brazoria County District Court

Cause No. 2023-CV-0028

Marcus Davidson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-7-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant further asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the occurrence in question. Plaintiff failed to keep a proper lookout, failed to yield the right of way while backing or proceeding through the parking lot, and failed to exercise ordinary care for his or her own safety. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and recovery is barred if Plaintiff's responsibility exceeds fifty percent.

Second, the injuries and damages claimed were proximately caused by the acts or omissions of persons or entities other than Defendant, over whom Defendant had no control. Defendant requests that the trier of fact consider the responsibility of all such responsible third parties.

Third, Defendant invokes the doctrine of sole proixmate cause and, in the alternative, new and independent cause. Any injury or damage Plaintiff suffered resulted from a separate, unforeseeable event occurring after the parking lot incident, not from any conduct of Defendant.